

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Benjamin Shelton	Team: Squad #11	CCRB Case #: 202300476	☒ Force	☐ Discourt.	☒ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 01/13/2023 5:50 PM, Tuesday, 04/11/2023 12:21 PM	Location of Incident: § 87(2)(b) and 100 Church Street	18 Mo. SOL 7/13/2024	Precinct: 90		
Date/Time CV Reported Wed, 01/18/2023 2:13 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 01/18/2023 2:13 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. PO Keoto Peterson	28884	967253	090 PCT
2. PO Michael Crichlow	20395	960083	090 PCT
3. PO Faisal Elwan	10625	968390	090 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Michal Jalbrzykowski	21736	959710	090 PCT
2. PO Jonathan Galindosanchez	23267	964005	090 PCT
3. PO Frank Vetere	25777	969417	090 PCT
4. PO Juan Carpio	27523	971860	090 PCT
5. DTS Francisco Martireyes	05255	951972	090 PCT
6. SGT Eryv Diaz	00000	932547	PSA 3
7. PO Alvaro Menjivar	11289	942194	PSA 3

Officer(s)	Allegation	Investigator Recommendation
A . PO Keoto Peterson	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson stopped § 87(2)(b)	A . Miscellaneous - Subject Resigned
B . PO Faisal Elwan	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan stopped § 87(2)(b)	B . Within NYPD Guidelines
C . PO Michael Crichlow	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow stopped § 87(2)(b)	C . Within NYPD Guidelines
D . PO Keoto Peterson	Force: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson used physical force against § 87(2)(b)	D . Miscellaneous - Subject Resigned
E . PO Faisal Elwan	Force: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan used physical force against § 87(2)(b)	E . Unfounded
F . PO Keoto Peterson	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson frisked § 87(2)(b)	F . Miscellaneous - Subject Resigned
G . PO Faisal Elwan	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan frisked § 87(2)(b)	G . Within NYPD Guidelines

Officer(s)	Allegation	Investigator Recommendation
H . PO Michael Crichlow	Force: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow used physical force against § 87(2)(b)	H . Unfounded
I . PO Michael Crichlow	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow searched § 87(2)(b)	I . Substantiated
J . PO Michael Crichlow	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow frisked § 87(2)(b)	J . Within NYPD Guidelines
K . PO Michael Crichlow	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow searched § 87(2)(b)	K . Within NYPD Guidelines
L . PO Keoto Peterson	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson searched § 87(2)(b)	L . Miscellaneous - Subject Resigned
M . PO Keoto Peterson	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson failed to provide § 87(2)(b) with a business card.	M . Miscellaneous - Subject Resigned
N . PO Michael Crichlow	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow failed to provide § 87(2)(b) with a business card.	N . Substantiated
O . PO Faisal Elwan	Abuse: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan failed to provide § 87(2)(b) with a business card.	O . Substantiated
P . PO Faisal Elwan	Untruthful Stmt.: On April 11, 2023, at 100 Church Street in Manhattan, Police Officer Faisal Elwan provided a false official statement to the CCRB.	P . Substantiated
§ 87(2)(g), § 87(4-b)		
§ 87(2)(g), § 87(4-b)		

Case Summary

On January 18, 2023, § 87(2)(b) filed this complaint with the CCRB via the agency's website.

On January 13, 2023, at approximately 5:50 p.m., § 87(2)(b) was stopped outside of § 87(2)(b) in Brooklyn by 90th Precinct officers, PO Keoto Peterson, PO Faisal Elwan, and PO Michael Crichlow (**Allegation A: Abuse of Authority, miscellaneous – subject resigned**) (**Allegations B and C: Abuse of Authority, within NYPD guidelines**). PO Peterson and PO Elwan allegedly pushed and pulled him (**Allegation D: Force, miscellaneous – subject resigned**) (**Allegation E: Force, unfounded**). PO Peterson and PO Elwan frisked § 87(2)(b) (**Allegation F: Abuse of Authority, miscellaneous – subject resigned**) (**Allegation G: Abuse of Authority, within NYPD guidelines**). PO Crichlow handcuffed § 87(2)(b) while allegedly pressing his elbow into § 87(2)(b) back (**Allegation H: Force, unfounded**). PO Crichlow reached into § 87(2)(b) left jacket pocket (**Allegation I: Abuse of Authority, substantiated**). PO Crichlow frisked § 87(2)(b) then reached into his right jacket pocket to remove his cellphone (**Allegations J and K: Abuse of Authority, within NYPD guidelines**). PO Peterson reached into § 87(2)(b) pants and jacket pockets to retrieve his identification card (“ID”) and cellphone (**Allegation L: Abuse of Authority, miscellaneous – subject resigned**). Officers let § 87(2)(b) go allegedly without offering him their business cards (**Allegation M: Abuse of Authority, miscellaneous – subject resigned**) (**Allegations N and O: Abuse of Authority, substantiated**).

On April 11, 2023, at approximately 12:21 p.m., PO Elwan provided a false official statement to the CCRB (**Allegation P: Untruthful Statement, substantiated**).

§ 87(2)(g), § 87(4-b)

No arrests were made, and no summons were issued regarding this incident.

§ 87(2)(b) provided cellphone video footage recorded by an unknown individual (BR 01). § 87(2)(b) provided surveillance video footage from cameras at § 87(2)(b) and informed the investigation of an equipment malfunction at § 87(2)(b) that led to negative results for footage from that address (BR 02-04). The NYPD Legal Bureau provided body-worn camera (BWC) video footage from the BWC assigned to 90th Precinct officers PO Peterson, PO Crichlow, PO Elwan, PO Michal Jalbrzykowski, PO Jonathan Galindo-Sanchez, PO Frank Vetere, PO Juan Carpio, and Det. Francisco Marti-Reyes, and Police Service Area 3 (PSA 3) officers Sgt. Ervy Diaz and PO Alvaro Menjivar (BR 05).

Findings and Recommendations

Allegation A – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson stopped § 87(2)(b)

Allegation B – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan stopped § 87(2)(b)

Allegation C – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow stopped § 87(2)(b)

Allegation F – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson frisked § 87(2)(b)

Allegation G – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan frisked § 87(2)(b)

Allegation J – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow frisked § 87(2)(b)

Allegation K – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow searched § 87(2)(b)

Footage from PO Peterson's BWC partially addresses these allegations (BR 06). The durational timestamp will be referenced. There is no audio for the first minute of footage. At 0:00, PO Peterson and PO Elwan run toward the front entrance to § 87(2)(b). At 0:03, § 87(2)(b) walks out of § 87(2)(b). He wears an open red puffy jacket. PO Elwan and PO Peterson run to § 87(2)(b) and place their hands on his upper body to guide him toward the building. § 87(2)(b) has his hands in his pockets upon their approach. PO Peterson and PO Elwan pull § 87(2)(b) hands out of his jacket pockets. PO Elwan and PO Peterson both squeeze the outside of § 87(2)(b) left jacket pocket. PO Elwan then frisks the left side of § 87(2)(b) waistband over his sweatshirt. At 0:15, PO Crichlow exits § 87(2)(b) and stands in front of § 87(2)(b). PO Elwan lifts § 87(2)(b) sweatshirt to frisk the waistband over his sweatpants. At 0:25, PO Elwan frisks § 87(2)(b) left jacket pocket again. At 0:52, PO Crichlow turns § 87(2)(b) around and handcuffs him. At 1:10, after turning § 87(2)(b) back toward the officers, PO Crichlow checks § 87(2)(b) left jacket pocket as PO Peterson frisks § 87(2)(b) right sweatpants pocket. PO Crichlow continues checking § 87(2)(b) upper body, but his discrete investigative actions are not clearly depicted. § 87(2)(b) and PO Crichlow argue about the validity of the stop as PO Crichlow explains the stop is connected to a robbery in the area. At 2:10, other officers approach § 87(2)(b) with another civilian, the victim of the robbery, and they return to their vehicle. PO Crichlow continues speaking with § 87(2)(b).

Footage from PO Elwan's BWC also addresses these allegations (BR 07). The durational timestamp will be referenced. There is no audio for the first minute of footage. At 0:37, PO Peterson frisks § 87(2)(b) right jacket pocket. At 1:12, after handcuffing § 87(2)(b) and turning him back to face officers, PO Crichlow frisks the left then the right side of the interior of § 87(2)(b) jacket before frisking his waistband over his sweatshirt.

Footage from PO Crichlow's BWC also addresses these allegations (BR 08). The durational timestamp will be referenced. At 1:13, PO Crichlow frisks the left side then the right side of § 87(2)(b) jacket. At 1:19, he reaches into § 87(2)(b) right jacket pocket and briefly removes a cellphone before placing it back inside. He frisks the right side of the interior of § 87(2)(b) jacket before frisking his left waistband area.

Footage from an unknown individual's cellphone also addresses these allegations (BR 01). At 0:42, PO Crichlow frisks § 87(2)(b) left sweatpants pocket.

§ 87(2)(b) provided testimony consistent with the above-referenced footage with the following additions and exceptions (BR 09). § 87(2)(b) exited the rear of § 87(2)(b) § 87(2)(b) walked through the interior courtyard of the § 87(2)(b) and approached the rear of § 87(2)(b) to walk through it on the way to a deli. Both addresses are in the same

§ 87(2)(b) at § 87(2)(b). His cellphone was in one of his jacket pockets. His ID cards, Airpod case, and other belongings he did not recall were in his sweatpants pockets. None of his possessions bulged in his clothing. As he entered § 87(2)(b) he noticed two uniformed officers at the side of the building. He never ran and only became aware of their interest in him when he exited through the front. After being stopped, PO Crichlow and PO Peterson asked § 87(2)(b) for ID, but he told them he needed to know what was going on before he provided it. PO Crichlow reached into multiple pockets of his jacket and sweatpants but did not recall PO Crichlow removing anything.

PO Peterson, PO Elwan, and PO Crichlow provided testimony consistent with the above-referenced footage with the following additions and exceptions (BR 10-12). Officers heard over the radio the report of a 911 call for a gunpoint robbery of a delivery person by three males with facemasks, one wearing a red puffy jacket and the other two in all black, at § 87(2)(b) which is directly next to § 87(2)(b) within the same § 87(2)(b). Property stolen included an electric scooter and a cellphone. The only information they received was via the initial radio run. PO Peterson, PO Elwan, and PO Crichlow were not assigned the radio run but assisted in canvassing the area. After walking around the § 87(2)(b) for several minutes, they walked in the interior courtyard on the side of § 87(2)(b) at the rear via a footpath within the complex. All three officers observed § 87(2)(b) next to the rear door of § 87(2)(b). § 87(2)(b) looked at the officers then ran several feet to the rear of § 87(2)(b) and entered. Officers issued no orders. PO Peterson and PO Elwan ran outside to the front of § 87(2)(b) as PO Crichlow ran to the rear to chase § 87(2)(b) through the building. They wanted to stop him as a suspect of the robbery as he was in the temporal and geographical vicinity of the crime, his gender and clothing matched a description of one of the perpetrators, and he ran when he noticed uniformed officers. Once stopped by PO Peterson and PO Elwan, they repeatedly ordered him to remove his hands from his jacket pockets which he refused so they removed his hands themselves. They, and PO Crichlow when he joined, repeatedly asked § 87(2)(b) for ID but he refused so PO Crichlow handcuffed him to ensure officers could properly identify him and for officer safety due to the potential presence of a firearm. § 87(2)(b) noncompliance with removing his hands from his pockets and providing ID raised the officers' suspicions. Officers frisked § 87(2)(b) to check for a firearm and never observed any bulges or other indications he was carrying one. PO Peterson felt a cellphone in one of his jacket pockets and made no other notable observations during his frisk. He did not believe it was a firearm during the frisk. PO Crichlow did not recall performing any frisk and PO Elwan did not recall making any notable observations during his frisk. PO Crichlow did not recall reaching into any of § 87(2)(b) pockets as depicted in the above-referenced footage. When presented with the above-referenced footage from his own BWC, PO Crichlow explained, based on the video, he frisked § 87(2)(b) to check for weapons. He did not recall feeling anything during the frisk. PO Crichlow saw himself reach into § 87(2)(b) right jacket pocket to remove a phone, and based on the video, believed he did so as he felt it during the frisk and took it out to check if it was a weapon since it was a hard object.

Event information for this incident, ICAD § 87(2)(b) shows that at 5:45 p.m., a female caller reports that she is with a delivery person who had just been robbed at gunpoint in front of § 87(2)(b) (BR 13). His phone, wallet, and delivery bike were stolen. All perpetrators were male, wore masks, two of them ran into § 87(2)(b) and the other fled on the bike toward Bushwick Avenue. At 5:49 p.m., it describes one perpetrator wearing a red puffy jacket and another with the gun as wearing a black puffy jacket. At 5:51 p.m., the third perpetrator is described also wearing a black puffy jacket.

Stop report § 87(2)(b) prepared by PO Peterson, reports that § 87(2)(b) was stopped based on information in ICAD § 87(2)(b) since he matched a specific suspect description and was observed in proximity to the scene of the crime (BR 14). It is noted that consent to search § 87(2)(b) was sought but not given, and no officer recalled this occurring

during the incident during their respective interviews. The report's narrative was consistent with officer testimony. It was noted that § 87(2)(b) was searched since during his frisk a hard object resembling a weapon was felt and was revealed to be his cellphone, and no officer recalled feeling any objects on § 87(2)(b) person they believed to be a weapon. PO Peterson noted this may have been an administrative error during his interview.

For the stop of an individual to be justified, an officer must have reasonable suspicion that the individual is committing, has committed, or is about to commit a crime People v. De Bour, 40 N.Y.2d 210 (1976) (BR 15). When an individual matches the general description of a perpetrator that has been broadcast over the radio and is observed by a police officer in close proximity to the incident location after a short period of time from the commission of the crime, that officer has reasonable suspicion to stop and detain that individual People v. Currie, 131 A.D.3d 1265 (2015) (BR 16). An officer may frisk the stopped individual when the officer reasonably suspects they are armed and dangerous and if during that frisk feels an object, they reasonably suspect is a weapon or dangerous instrument, they may place their hands inside a pocket to remove that object for further inspection NYPD Patrol Guide Procedure 212-11 (BR 17).

§ 87(2)(g)

§ 87(2)(g)

it is recommended that **Allegations A and F** be closed as **miscellaneous – subject resigned**.

§ 87(2)(g)

it is recommended that **Allegations B, C, G, J and K** be closed as **within NYPD guidelines**.

Allegation D – Force: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson used physical force against § 87(2)(b)

Allegation E – Force: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan used physical force against § 87(2)(b)

Allegation H – Force: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow used physical force against § 87(2)(b)

Footage from PO Peterson's BWC addresses these allegations (BR 06). The durational timestamp will be referenced. There is no audio for the first minute of footage. At 0:00, PO Peterson and PO Elwan approach § 87(2)(b). Both officers placed their palms on his torso to guide him backward toward the wall of a building. At no point do they grab, push, or pull § 87(2)(b) other than to pull his arms to remove his hands from his pockets.

Footage from PO Crichlow's BWC also addresses these allegations (BR 08). The durational timestamp will be referenced. There is no audio for the first minute of footage. At 0:52, PO Crichlow grabs § 87(2)(b) left arm and turns him around. PO Crichlow handcuffs § 87(2)(b) and at no point does he or another officer place their elbow or other part of their body into his back.

§ 87(2)(b) stated that when PO Peterson and PO Elwan stopped him, they "jumped,"

“scuffled,” and “roughed [him] up.” They held his upper-body and “pushed and pulled” him toward the wall of the building. § 87(2)(b) was unable to provide specific details about these actions during follow-up questioning since things happened quickly. When PO Crichlow handcuffed him, he placed his elbow into § 87(2)(b) middle/lower back which caused discomfort and pain to the area. Following the incident, § 87(2)(b) noticed stabbing pains and discomfort in both his hands and wrists but especially in his left hand and wrist, his left pointer finger was bent at an irregular angle that he managed to bend back into place, and he felt pain in his back. He was unable to state specifically how he sustained these injuries other than the general actions of the officers. He went to a private doctor for his symptoms but refused to provide the investigation permission to retrieve his medical records or to provide a reason for that refusal.

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation D** be closed as **miscellaneous – subject resigned**.

No officer is depicted in the comprehensive BWC footage using physical force against § 87(2)(b). It is therefore recommended that **Allegations E and H** be **unfounded**.

Allegation I – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow searched § 87(2)(b)

Allegation L – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson searched § 87(2)(b)

Footage from PO Peterson’s BWC addresses these allegations (BR 06). The durational timestamp will be referenced. At 1:10, after § 87(2)(b) is handcuffed and facing officers, PO Peterson frisks § 87(2)(b) right sweatpants pocket and reaches inside to grab his ID.

Footage from PO Elwan’s BWC also addresses these allegations (BR 07). The durational timestamp will be referenced. There is no audio for the first minute of footage. At 0:37, PO Peterson frisks § 87(2)(b) right jacket pocket. At 1:09, just after handcuffing § 87(2)(b) and turning him toward officers, PO Crichlow places his right hand in § 87(2)(b) left jacket pocket. No frisk of that pocket by PO Crichlow is depicted in any of the available footage before he searches it. At 4:30, PO Galindo-Sanchez asks PO Peterson about § 87(2)(b) cellphone and PO Peterson retrieves it from inside § 87(2)(b) right jacket pocket. At 5:00, it appears that PO Peterson returns § 87(2)(b) ID and cellphone to his right jacket pocket.

§ 87(2)(b) stated that after he was stopped, PO Crichlow and PO Peterson asked § 87(2)(b) for ID, but he told them he needed to know what was going on before he provided them it. PO Crichlow and PO Peterson reached into multiple pockets of his jacket and sweatpants, at which point PO Peterson removed his ID and cellphone from his person, but he did not recall which pockets and did not recall being frisked. PO Peterson returned his possessions to a jacket pocket before the conclusion of the stop.

PO Crichlow did not recall frisking § 87(2)(b) or reaching into any of § 87(2)(b) jacket pockets. When presented with the above-referenced footage from PO Elwan’s BWC, PO Crichlow saw himself reach into § 87(2)(b) left jacket pocket. PO Crichlow did not know whether he frisked the left side of his jacket before reaching in. PO Crichlow could not explain specifically why he reached into his left jacket pocket, but believed he felt something that warranted reaching in to see what it was. He had no independent recollection of that and based his explanation on the video.

PO Peterson felt a cellphone in one of § 87(2)(b) jacket pockets and made no other notable observations during his frisk. He did not believe it was a firearm during the frisk. PO Peterson felt an ID card in § 87(2)(b) right sweatpants pocket and reached in to remove it so that officers could ID him. PO Peterson reached into the pocket where he felt the cellphone to retrieve it so officers could verify if it belonged to the crime victim.

PO Elwan frisked § 87(2)(b) left jacket pocket and never felt anything indicative of a potential firearm there.

Stop report § 87(2)(b) prepared by PO Peterson, notes that § 87(2)(b) was searched since during his frisk a hard object resembling a weapon was felt and was revealed to be his cellphone, and no officer recalled feeling any objects on § 87(2)(b) person they believed to be a weapon. PO Peterson noted this may have been an administrative error during his interview and stated he never felt anything indicative to him of a weapon on § 87(2)(b) person.

An officer may frisk the stopped individual, who may refuse to identify themselves, when the officer reasonably suspects they are armed and dangerous, and if during that frisk feels an object, they reasonably suspect is a weapon or dangerous instrument, they may place their hands inside a pocket to remove that object. When completing a Stop report, officers are to note “REFUSED” if the person refused to identify themselves NYPD Patrol Guide Procedure 212-11. A warrantless search must be made for protective measures, not to recover or locate evidence related to a crime New York v. Zambrano, 2003 N.Y. Misc. LEXIS 1539 (2003) (BR 18).

§ 87(2)(g)

No officer testified to feeling or otherwise observing anything in § 87(2)(b) left jacket pocket that resembled a weapon, and PO Crichlow is depicted reaching into that pocket without ever frisking it. § 87(2)(g)

it is recommended that **Allegation L** be closed as **miscellaneous – subject resigned**.

§ 87(2)(g) it is recommended that **Allegation I** be **substantiated**.

Allegation M – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Keoto Peterson failed to provide § 87(2)(b) with a business card.

Allegation N – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Michael Crichlow failed to provide § 87(2)(b) with a business card.

Allegation O – Abuse of Authority: On January 13, 2023, at § 87(2)(b) in Brooklyn, Police Officer Faisal Elwan failed to provide § 87(2)(b) with a business card.

Footage from PO Crichlow’s BWC addresses these allegations (BR 08). The durational timestamp will be referenced. At 6:59, after § 87(2)(b) has been removed from handcuffs and had a coherent conversation with PO Crichlow about the stop and having his possessions returned to him, PO Crichlow tells him, “Have a good day.” § 87(2)(b) immediately walks away. At 7:02, PO Peterson states, “Business card?” He is the only officer who is heard offering a business card. PO Jalbrzykowski checks with PO Crichlow, PO Peterson, and PO Elwan, and an officer tells him § 87(2)(b) does not want one. No officer is depicted offering a business card a second time.

Footage from PO Peterson’s BWC also addresses these allegations (BR 06). The durational timestamp will be referenced. At 6:59, PO Crichlow tells § 87(2)(b) to have a good day. At

7:01, PO Peterson states, “Business card?” as § 87(2)(b) is several feet away with his back toward the officer. At 7:09, PO Peterson states, “Bus-” as § 87(2)(b) is several feet away with his back toward the officer but does not complete the offer. No other officer is depicted offering a business card.

Footage from PO Elwan’s BWC also addresses these allegations (BR 07). The durational timestamp will be referenced. At 6:57, PO Crichlow tells § 87(2)(b) to have a good day. PO Peterson is the only officer depicted offering a business card, consistent with PO Crichlow’s and PO Peterson’s respective BWC footage.

§ 87(2)(b) stated he was not offered a business card by any officer.

PO Peterson stated that after § 87(2)(b) was released from handcuffs, he continued speaking with officers and appeared ready to walk away. PO Peterson asked if he wanted a business card. § 87(2)(b) was close enough to hear but appeared to ignore the offer before walking away. § 87(2)(b) returned briefly when PO Peterson began to offer again (“Do you want a bus-”), but he walked away again without engaging officers. PO Peterson did not offer again as § 87(2)(b) appeared focused on just leaving.

PO Crichlow believed he offered a business card but did not definitively recall doing so. § 87(2)(b) continued walking away without responding and, as it appeared that § 87(2)(b) just wanted to leave based on his argumentative statements and immediate departure, PO Crichlow did not follow up or attempt to stop him again. PO Crichlow did not recall if other officers also offered. When presented his above-referenced footage from his own BWC, PO Crichlow heard himself tell § 87(2)(b) to have a “Good day,” which is the point he considered to be the conclusion of the stop. PO Crichlow did not recall himself or any other officer offering a business card prior to that or when PO Jalbrzykowski asked about business cards. PO Crichlow did not hear himself offer a business card in the footage, but believed he may have done so before or after the presented events. PO Crichlow reiterated it appeared that § 87(2)(b) just wanted to walk away.

PO Elwan stated that after PO Crichlow released § 87(2)(b) from handcuffs, PO Crichlow told him he was free to leave. § 87(2)(b) was upset and cursing. Officers tried talking to him, but § 87(2)(b) walked away. PO Elwan asked § 87(2)(b) “Do you want a business card?” toward the end of the stop after being reminded by PO Jalbrzykowski. § 87(2)(b) walked away without responding. PO Elwan noted this offer was not captured on his BWC. PO Elwan believed PO Peterson and PO Crichlow also offered their business cards. PO Elwan believed § 87(2)(b) could hear him as he was five to 10 feet away but was too busy cursing and walking away so he chose not to accept it. PO Elwan would have offered him a card at the conclusion of the stop, as he usually does, if § 87(2)(b) had not been cursing and talking at the end of the stop. When presented the above-detailed footage from his own BWC, PO Elwan heard PO Jalbrzykowski mention business cards, which was followed by PO Elwan, PO Peterson, and PO Crichlow offering their business cards. His voice near the end of the footage is when he began offering but he deactivated his camera before his full offer could be captured.

At the conclusion of a stop, frisk, and/or search of person, an officer must offer a business card to the subject of that investigative activity New York City Administrative Code 14-174 (BR 19).

§ 87(2)(g)

§ 87(2)(b) it is recommended that **Allegation M** be closed as **miscellaneous – subject resigned**.

PO Peterson is the only officer depicted attempting to offer his business card. § 87(2)(g)

§ 87(2)(g) it is recommended that **Allegations N and O** be **substantiated**.

Allegation P – Untruthful Statement: On April 11, 2023, at 100 Church Street in Manhattan, Police Officer Faisal Elwan provided a false official statement to the CCRB.

Footage from PO Elwan's BWC addresses this allegation (BR 07). The durational timestamp will be referenced. At 6:57, PO Crichlow tells § 87(2)(b) to have a good day. PO Peterson is the only officer depicted offering a business card as PO Jalbrzykowski checks with him PO Elwan, and PO Crichlow if they offered. At 7:04, before § 87(2)(b) enters a crosswalk, he turns and walks back toward § 87(2)(b). At 7:07, PO Elwan is within a few feet of § 87(2)(b) makes an incomprehensible statement and walks back to the crosswalk while PO Elwan is silent. At 7:11, as § 87(2)(b) is in the crosswalk in the middle of the street, PO Elwan turns toward PO Peterson, in his immediate vicinity, and PO Crichlow and tells other officers, "Alright, they got the, uh," and is silent for the final four seconds of footage. He makes no apparent attempts to speak to § 87(2)(b) or offer a business card in any of the above-detailed footage. At 7:16, as PO Elwan deactivates his camera, PO Crichlow turns his body and BWC toward PO Elwan and PO Peterson.

Footage from PO Crichlow's BWC also partially addresses this allegation (BR 08). The durational timestamp will be referenced. At 7:17, PO Crichlow turns toward PO Elwan and PO Peterson until the conclusion of his BWC at 7:23. As he turns, § 87(2)(b) is briefly depicted crossing the street and is more than halfway across the crosswalk. PO Elwan appears to be looking directly at PO Crichlow. PO Elwan makes no statements to § 87(2)(b) and does not look in his direction at all.

PO Elwan stated that he offered § 87(2)(b) a business card. Officers tried talking to § 87(2)(b) after PO Crichlow told him he was free to go, but § 87(2)(b) walked away. PO Elwan asked § 87(2)(b) "Do you want a business card?" toward the end of the stop after being reminded by PO Jalbrzykowski. § 87(2)(b) walked away without responding. PO Elwan noted this offer was not captured on his BWC. When presented the above-detailed footage from his own BWC, PO Elwan heard PO Jalbrzykowski mention business cards, which was followed by PO Elwan, PO Peterson, and PO Crichlow offering their business cards. His voice just before the end of the footage also captures him offering but he deactivated his camera before his full offer could be captured. Before being presented his BWC footage at his CCRB interview, PO Elwan had most recently reviewed it within the week prior to the interview.

An officer is guilty of making a false official statement when they make a statement, they know to be untrue that is material to the outcome of an investigation and do not alter it when presented contradictory evidence NYPD Administrative Guide Procedure 304-10 (BR 25).

PO Elwan provided information concerning his failure to provide § 87(2)(b) with a business card, § 87(2)(g). At no point in any of the available footage, which covers the timeframe PO Elwan alleged he offered a business card, does he make any attempt to provide § 87(2)(b) with his business card. When presented video evidence that contradicted his testimony, and which he had reviewed recently before his CCRB interview, PO Elwan reasserted that he did offer a business card, citing twice in his BWC footage where his voice is heard offering it. At the first point, after PO Jalbrzykowski asks officers if they offered a business card, only PO Peterson is heard offering. At the second point, as § 87(2)(b) crosses the street, PO Elwan's voice is only heard speaking to officers and is silent before he deactivates his BWC. § 87(2)(b) is fully removed from the scene by that time and officers are no longer interacting with him, thus the interaction was definitively concluded. PO Crichlow's BWC confirms that PO Elwan was no longer attempting to interact with § 87(2)(b) following the deactivation of PO Elwan's BWC and made no attempt to offer him a business card at that point.

§ 87(2)(g)

it is recommended that **Allegation P** be **substantiated**.

§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one other CCRB complaint, 201301242, and has not been named as a victim in any other allegations (BR 23).
- PO Peterson has been a member-of-service for four years and has been a subject of four other CCRB complaints and seven other allegations, none of which were substantiated (see officer history): § 87(2)(g)
- PO Elwan has been a member-of-service for three years and has been a subject of five other cases and 14 other allegations, of which one has been substantiated (see officer history):
 - 202106165 involved a substantiated allegation of a failure to provide a business card. The Board recommended Command Discipline A, which the NYPD imposed.
 - § 87(2)(g)
- PO Crichlow has been a member-of-service for seven years and has been a subject of nine other cases and 29 other allegations, of which two have been substantiated (see officer history):
 - 201906121 involved a substantiated allegation of a failure to provide a business card. The Board recommended Instructions, which the NYPD imposed.
 - 201909838 involved a substantiated allegation of a search of person. The Board recommended Command Discipline A, which the NYPD imposed.
 - § 87(2)(g)

Mediation, Civil, and Criminal Histories

- This complaint was not suitable for mediation.
- As of April 11, 2023, § 87(2)(b) filed a Notice of Claim with the City of New York claiming pain and suffering, deprivation of liberty, and emotional pain and suffering and seeking \$250,000 as redress (BR 23-24). § 87(2)(a)

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[redacted]

Squad: 11

Investigator: Benjamin Shelton AIM Benjamin Shelton 03/21/2024
Signature Print Title & Name Date

Squad Leader: Edwin Pena IM Edwin Pena 03/21/24
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date